



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

January 23, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20482
(FIFTH REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of residue contained in intermediate bulk containers (IBCs) where the closure nearest to the hazardous materials cannot be closed first. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Maritime Dangerous Goods (IMDG) Code other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
 - d. This special permit serves as an “exemption” under Chapter 7.9, Section 7.9.1 of the IMDG Code (see IMO MSC/Circ. 1075-Granting Exemptions from the Provisions of the IMDG Code) and as a “Competent Authority Approval” as defined under 49 CFR § 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the IMDG Code.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.35(e) and 4.1.1.7.1 of the IMDG Code in that the closure system nearest to the hazardous material being carried must be closed first, except as stated herein.
5. BASIS: This special permit is based on the application of Solid Power Operating, Inc. dated September 8, 2022, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Corrosive solid, toxic, n.o.s. (lithium sulfide)	8	UN2923	II
Phosphorus pentasulfide, <i>free from yellow or white phosphorus</i>	4.3	UN1340	II

7. SAFETY CONTROL MEASURES:a. PACKAGING:

- (1) Specified packaging is a UN11B aluminum IBC for solids loaded or discharged by gravity conforming to the specifications in TEN-E Packaging Services, Inc. Test Report # 17-MN40033 (Rev 1), dated June 7, 2017, on file with the Office of Hazardous Materials Safety.
- (2) The IBCs are transported with the inner Technaflow or Wey P2S5 Valve Gate open and an additional outer lid and clamp over the top opening.
- (3) The IBCs are only authorized to contain residue, as defined in § 171.8, of the hazardous materials described in paragraph 6 of this special permit.

b. OPERATIONAL CONTROLS:

- (1) Packagings authorized under paragraph 7.a. of this special permit may only be transported for repair to a repair facility authorized by the grantee.
- (2) The inner Technaflow or Wey P2S5 Valve Gate must be repaired before the IBC may be reoffered for transportation pursuant to the HMR and the IMDG Code.
- (3) When transported aboard cargo vessel, the residues of the hazardous materials covered by this special permit must fully comply with the Class 4 and Class 8, as appropriate, segregation and stowage requirements of the HMR and the IMDG Code.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit, the HMR, and the IMDG Code.
- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- c. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of countries of origin, transit, and destination.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BenM/NICKS